

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CASEY NOELLE NUCKOLS FLORIANI,

Petitioner

VS.

NICCOLO TORU FLORIANI,

Respondent

) Case Number: FDV-25-818707

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The Court has been informed that attorney Margaret Pendergast is available to accept appointment as Mother's contempt counsel. The parties are ordered to appear on 8/25/2026 at 9AM in Dept. 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) On for hearing is Respondent Niccolo Floriani (Father)'s Order to Show Cause and Affidavit for Contempt filed 5/4/2026 wherein Father alleges that Petitioner Casey Floriani (Mother) violated the Findings and Order After Hearing filed 3/2/2026 which provides Father with supervised visitation at Rally for one hour per week plus two hours of professionally supervised visitation each week. The order also provides that Father shall be solely responsible and pay all costs of the supervised visits. Father states that on 4/23/2026, he was notified by a Child First Supervised Visitation Program Direct Eric Baker that Mother was cancelling the visitation set for Saturday, 4/25/2026. Father states he immediately responded that the cancellation was without his consent and unacceptable. Father states he is required to give 72 hours advance notice for cancellations;

1 otherwise, he is charged \$327.80 for visitation by Child First and \$277.25 for an American Sign
2 Language interpreter. Father states that on Friday, 4/24/2026, Mr. Baker emailed him stating he
3 had communicated his request to Mother that the 4/25/2026 visit remain in place. Father states
4 that on 4/25/2026, he arrived at the Academy of Science in San Francisco at 2:50 PM and he
5 waited until 5:00 PM and Mother did not show up. Supervised visitation provider Lowell Davis
6 documented that Mother was a “no-show” and left with the ASL interpreter. In addition to his
7 request for an OSC Re: Contempt, Father requests that Mother reimburse him for the \$605.06 he
8 was charged by the visitation supervisor and the ASL interpreter plus attorney’s fees and costs for
9 bringing this OSC Re: Contempt.

- 10 2) Per the Proof of Service filed 6/24/2026, Mother was personally served with the OSC: Re
11 Contempt on 6/23/2026.
- 12 3) At the prior 7/9/2026 hearing on Father’s OSC Re: Contempt, the Court made a finding that
13 Mother qualifies for appointment of contempt counsel and continued matter to 8/25/2026 for
14 arraignment.
- 15 4) On 7/13/2026, Judge Wiley issued a 1-year Domestic Violence Restraining Order protecting
16 Mother against Father.
- 17 5) Mother has not filed any pleadings with respect to Father’s OSC Re: Contempt.

18 **B. Findings and Order**

- 19 1) **The Court has been informed that attorney Margaret Pendergast is prepared to accept**
20 **appointment as Mother’s contempt counsel. The parties are ordered to appear on 8/25/2026**
21 **at 9AM in Dept. 404 in-person or by Zoom video.**
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